Joseph LaCapria

From:
Sent:
To: Joseph LaCapria
Subject: clearing house

Should violations that occurred before the Clearinghouse Implementation Date be reported to the Clearinghouse?

No. The Clearinghouse contains only violations that occurred on or after January 6, 2020. If a driver's violation occurred prior to January 6, 2020, and was in the return-to-duty (RTD) process when the Clearinghouse was implemented, the violation and any related RTD activity will not be entered into the Clearinghouse.
Last Updated : January 08, 2020

LABOR RELATIONS

UNITED STATES POSTAL SERVICE

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February 20, 2020

Mr. Mark Dimondstein
President
American Postal Workers Union, AFL-CIO
1300 L Street, NW
Washington, DC 20005-4128

Certified Mail Tracking Number:
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Dear Mark:

As you may or may not be aware, a recent act of Congress directed the Secretary of Transportation to establish a Clearinghouse. (See 49 CFR 382.701 through 382.727). The Clearinghouse is a secure online database providing employers, state licensing agencies, and enforcement officers with real-time information about commercial driver's license (CDL) holders' violations of the Department of Transportation (DOT) drug or alcohol testing rules. The Postal Service is required to abide by DOT's drug and alcohol testing regulations which now include the Clearinghouse.

Initial information of employees holding CDLs will be entered into the Clearinghouse by their State Driver Licensing Agency (SDLA). As of January 6, 2020, the Drug and Alcohol Clearinghouse is fully operational and mandatory use is now in effect.

Drivers may register with the Clearinghouse and registration is optional. Registration will allow drivers free access to their own Clearinghouse record.

The Postal Service is required to query the Clearinghouse for current and prospective employees' drug and alcohol violations. The Postal Service is required to annually query the Clearinghouse for each driver they currently employ. Employees will be required to sign a consent to allow the Postal Service to run the annual query. (See 49 CFR 382.701 (b)). The Postal Service anticipates to run the first query in late 2020.

If you have any questions, please contact James Lloyd at extension 3946.

Sincerely,

Rickey R. Dean
Manager
Contract Administration (APWU)

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(CA2020-66)

49 CFR § 382.705 - Reporting to the Clearinghouse.

CFR

§ 382.705 Reporting to the Clearinghouse.

(a) ***MROs.***

(1) Within 2 business days of making a determination or verification, MROs must report the following information about a driver to the Clearinghouse:

(i) Verified positive, adulterated, or substituted controlled substances test results;

(ii) Refusal-to-test determination by the MRO in accordance with 49 CFR 40.191(a)(5), (7), and (11), (b), and (d)(2).

(2) MROs must provide the following information for each controlled substances test result specified in paragraph (a)(1) of this section:

(i) Reason for the test;

(ii) Federal Drug Testing Custody and Control Form specimen ID number;

(iii) Driver's name, date of birth, and CDL number and State of issuance;

(iv) Employer's name, address, and USDOT number, if applicable;

(v) Date of the test;

(vi) Date of the verified result; and

(vii) Test result. The test result must be one of the following:

(A) Positive (including the controlled substance(s) identified);

(B) Refusal to test: Adulterated;

(C) Refusal to test: Substituted; or

(D) Refusal to provide a sufficient specimen after the MRO makes a determination, in accordance with § 40.193 of this title, that the employee does not have a medical condition that has, or with a high

degree of probability could have, precluded the employee from providing a sufficient amount of urine. Under this subpart a refusal would also include a refusal to undergo a medical examination or evaluation to substantiate a qualifying medical condition.

(3) Within 1 business day of making any change to the results report in accordance with paragraph (a)(1) of this section, a MRO must report that changed result to the Clearinghouse.

(b) ***Employers.***

(1) Employers must report the following information about a driver to the Clearinghouse by the close of the third business day following the date on which they obtained that information:

(i) An alcohol confirmation test result with an alcohol concentration of 0.04 or greater;

(ii) A negative return-to-duty test result;

(iii) A refusal to take an alcohol test pursuant to 49 CFR 40.261;

(iv) A refusal to test determination made in accordance with 49 CFR 40.191(a)(1) through (4), (a)(6), (a)(8) through (11), or (d)(1), but in the case of a refusal to test under (a)(11), the employer may report only those admissions made to the specimen collector; and

(v) A report that the driver has successfully completed all follow-up tests as prescribed in the SAP report in accordance with §§ 40.307, 40.309, and 40.311 of this title.

(2) The information required to be reported under paragraph (b)(1) of this section must include, as applicable:

(i) Reason for the test;

(ii) Driver's name, date of birth, and CDL number and State of issuance;

(iii) Employer name, address, and USDOT number;

(iv) Date of the test;

(v) Date the result was reported; and

(vi) Test result. The test result must be one of the following:

(A) Negative (only required for return-to-duty tests administered in accordance with § 382.309);

(B) Positive; or

(C) Refusal to take a test.

(3) For each report of a violation of 49 CFR 40.261(a)(1) or 40.191(a)(1),

the employer must report the following information:

(i) Documentation, including, but not limited to, electronic mail or other contemporaneous record of the time and date the driver was notified to appear at a testing site; and the time, date and testing site location at which the employee was directed to appear, or an affidavit providing evidence of such notification;

(ii) Documentation, including, but not limited to, electronic mail or other correspondence, or an affidavit, indicating the date the employee was terminated or resigned (if applicable);

(iii) Documentation, including, but not limited to, electronic mail or other correspondence, or an affidavit, showing that the C/TPA reporting the violation was designated as a service agent for an employer who employs himself/herself as a driver pursuant to paragraph (b)(6) of this section when the reported refusal occurred (if applicable); and

(iv) Documentation, including a certificate of service or other evidence, showing that the employer provided the employee with all documentation reported under paragraph (b)(3) of this section.

(4) Employers must report the following violations by the close of the third business day following the date on which the employer obtains actual knowledge, as defined at § 382.107, of:

(i) On-duty alcohol use pursuant to § 382.205;

(ii) Pre-duty alcohol use pursuant to § 382.207;

(iii) Alcohol use following an accident pursuant to § 382.209; and

(iv) Controlled substance use pursuant to § 382.213.

(5) For each violation in paragraph (b)(4) of this section, the employer must report the following information:

(i) Driver's name, date of birth, CDL number and State of issuance;

(ii) Employer name, address, and USDOT number, if applicable;

(iii) Date the employer obtained actual knowledge of the violation;

(iv) Witnesses to the violation, if any, including contact information;

(v) Description of the violation;

(vi) Evidence supporting each fact alleged in the description of the violation required under paragraph (b)(4) of this section, which may include, but is not limited to, affidavits, photographs, video or audio recordings, employee statements (other than admissions pursuant to § 382.121), correspondence, or other documentation; and

(vii) A certificate of service or other evidence showing that the employer provided the employee with all information reported under paragraph (b)(4) of this section.

(6) An employer who employs himself/herself as a driver must designate a C/TPA to comply with the employer requirements in paragraph (b) of this section related to his or her own alcohol and controlled substances use.

(c) ***C/TPAs.*** Any employer may designate a C/TPA to perform the employer requirements in paragraph (b) of this section. Regardless of whether it uses a C/TPA to perform its requirements, the employer retains ultimate responsibility for compliance with this section. Exception: An employer does not retain responsibility where the C/TPA is designated to comply with employer requirements as described in paragraph (b)(6) of this section.

(d) ***SAPs.***

(1) SAPs must report to the Clearinghouse for each driver who has completed the return-to-duty process in accordance with 49 CFR part 40, subpart O, the following information:

(i) SAPs name, address, and telephone number;

(ii) Driver's name, date of birth, and CDL number and State of issuance;

(iii) Date of the initial substance-abuse-professional assessment; and

(iv) Date the SAP determined that the driver demonstrated successful compliance as defined in 49 CFR part 40, subpart O, and was eligible for return-to-duty testing under this part.

(2) SAP must report the information required by paragraphs (d)(1)(i) through (iii) of this section by the close of the business day following the date of the initial substance abuse assessment, and must report the information required by paragraph (d)(1)(iv) of this section by the close of the business day following the determination that the driver has completed the return-to-duty process.

(e) ***Reporting truthfully and accurately.*** Every person or entity with access must report truthfully and accurately to the Clearinghouse and is expressly prohibited from reporting information he or she knows or should know is false or inaccurate.

REPORTING ENTITIES AND CIRCUMSTANCES

Reporting entity	When information will be reported to clearinghouse

Prospective/Current Employer of CDL Driver	**- An alcohol confirmation test with a concentration of 0.04 or higher.** **- Refusal to test (alcohol) as specified in 49 CFR 40.261.** - Refusal to test (drug) not requiring a determination by the MRO as specified in 49 CFR 40.191. - Actual knowledge, as defined in 49 CFR 382.107, that a driver has used alcohol on duty, used alcohol within four hours of coming on duty, used alcohol prior to post-accident testing, or has used a controlled substance. - Negative return-to-duty test results (drug and alcohol testing, as applicable) - Completion of follow-up testing.
Service Agent acting on behalf of Current Employer of CDL Driver	**- An alcohol confirmation test with a concentration of 0.04 or higher.** **- Refusal to test (alcohol) as specified in 49 CFR 40.261.** - Refusal to test (drug) not requiring a determination by the MRO as specified in 49 CFR 40.191. - Actual knowledge, as defined in 49 CFR 382.107, that a driver has used alcohol on duty, used alcohol within four hours of coming on duty, used alcohol prior to post-accident testing, or has used a controlled substance. - Negative return-to-duty test results (drug and alcohol testing, as applicable) - Completion of follow-up testing.
MRO	**- Verified positive, adulterated, or substituted drug test result.** - Refusal to test (drug) requiring a determination by the MRO as specified in 49 CFR 40.191.
SAP	**- Identification of driver and date the initial assessment was initiated.** - Successful completion of treatment and/or education and the determination of eligibility for return-to-duty testing.

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